

22CMCV00155 22CMCV00155

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-06-30

Motion: PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT

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Case Number: 22CMCV00155 Hearing Date: June 30, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

LIN WANG,

Plaintiff,

vs.

CHUNMING

LI, et al.,

Defendants.

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CASE NO: 22CMCV00155

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT

Dept.

A

DATE:

June 30, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 06/03/2022

DISPOSED:

06/06/2025

MOVING PARTY: Plaintiff

Lin Wang

RESPONDING PARTY: Defendant

Chunming Li

1. Background

This is an action for failure to pay wages. Plaintiff

Lin Wang ("Plaintiff") alleged that she was employed by defendant Chunming Li ("Defendant"). Plaintiff alleged that Defendant required Plaintiff to work in excess of eight hours a day and forty hours a week but failed to pay wages for excess hours worked. Plaintiff also alleged that Defendant failed to pay Plaintiff a commission included in her compensation for her last month of work. Plaintiff alleged that Defendant unlawfully terminated Plaintiff for using a sick day.

On June 5, 2025, the action was dismissed without prejudice and with the court retaining jurisdiction to enforce the parties' settlement agreement pursuant to Code of Civil Procedure § 664.6.

2. Discussion

Plaintiff now moves to enforce the settlement agreement. Plaintiff contends that the parties settled for \$40,000, but that Defendant has only made payments in the total amount of \$13,200, leaving a remaining amount due of \$26,800, and has defaulted on the agreement. In opposition, Defendant contends that he has made payments totaling \$20,800. Defendant does not otherwise oppose the motion.

Code of Civil Procedure § 664.6 provides: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement."

Strict

compliance with the statutory requirements is necessary before a court can

enforce a settlement agreement under this statute. (Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc. (2002) 103 Cal.App.4th 30, 37.) To enforce a written settlement agreement under Code of Civil Procedure § 664.6, the following three elements must be met: (1) the parties must have come to a meeting of the minds on all material points; (2) there must be a writing that contains the material terms of the agreement; and (3) the writing must be signed by the parties, an attorney who represents the party, or an agent authorized by an insurer to sign on the party's behalf. (Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 797-98; Code Civ. Proc. § 664.6.) On a motion to enforce a settlement agreement, the court must determine whether the settlement agreement is valid and binding and assess whether the material terms of the settlement were reasonably well defined and certain and whether the parties expressly acknowledged that they understood and agreed to be bound by those terms. (Estate of Jones (2022) 82 Cal.App.5th 948, 952.)

Plaintiff has provided a copy of the written accepted offer to compromise between Plaintiff and Defendant, signed by both parties. (Hsu Decl., Ex. A.) There is no indication that the parties did not come to a meeting of the minds on all material points. This is sufficient to satisfy the requirements of Code of Civil Procedure § 664.6.

The settlement agreement states in pertinent part:

"2. Settlement Payment. In exchange for Plaintiffs execution and performance of this Agreement, Defendants will pay Plaintiff the total sum of \$40,000.00 as a full and final settlement between the Parties (the "Settlement Payment"), which shall be subject to the issuance of 1099 MISC Form(s).

...

2.1.1. First check in the amount of \$7,000.00 will be delivered within thirty (30) days of the completion of both of the following events: (1) receipt of the fully executed original Agreement by Defendants' counsel, James Howard, Esq.; and (2) the expiration of the Effective Date as set forth below. 2.1.2. Followed by subsequent second, third, fourth, fifth, and sixth checks in the amount of \$6,600.00 delivered by the 1st calendar day of each month, beginning on July 1, 2025 through November 1, 2025."

(Hsu Decl., Ex. A.)

The settlement agreement requires Defendant to pay Plaintiff a total of \$40,000 in monthly installments between July 1, 2025 and November 1, 2025. Attorney Ray Hsu states that his office received two payments of \$6,600 on October 16, 2025 and December 2025, and that he has not received any other settlement payments from Defendant. (Hsu Decl. ¶¶ 10-12.)

Defendant contends that he has made payments totaling \$20,800. However, in support of this contention, Defendant provides only three unauthenticated images of receipts for wire transfers and withdrawals of money. A writing must be authenticated to be admitted into evidence. (Evid. Code § 1401, subd. (a).) Defendant has therefore provided no admissible evidence as to total sum of money that he contends he has paid.

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Defendant is obligated to pay a total of \$40,000 in monthly installments under the terms of the settlement agreement, which he has not done as of the filing of the motion, and the requirements of Code of Civil Procedure § 664.6 have been satisfied, the court grants Plaintiff's motion to enforce the settlement agreement.

3. Conclusion

Based

on the foregoing, the court GRANTS Plaintiff's motion to enforce the settlement agreement against Defendant. The court will enter judgment in favor of Plaintiff in the amount of \$26,800.00. Plaintiff is ordered to submit a proposed judgment on form JUD-100 within ten (10) days of the date of entry of this order.

Plaintiff

is ordered to give notice.

IT

IS SO ORDERED.

DATED: June 30, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court